

## 22STCV04087 22STCV04087

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Case Number: 22STCV04087 Hearing Date: September 15, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 15, 2026

Case Name: Caldwell v. Live Nation World

Wide, Inc., et al.

Case

No.: 22STCV04087 Matter: Motion for Summary Judgment or, in the Alternative, Summary

Adjudication

Moving Party: Defendant

Contemporary Services Corporation

Responding Party: Plaintiffs Darrylene Corniel and Estate

of Darrell Caldwell, by and through Darrylene Corniel as Personal

Representative for the Motion for Summary Judgment

Tentative

Ruling: Defendant Contemporary Services Corporation's motion for summary judgment is denied.

Defendant Contemporary Services Corporation's motion for summary adjudication is denied.

Plaintiff

Darrylene Corniel ("Corniel") and Estate of Darrell Caldwell ("Estate")

(collectively “Plaintiffs”) filed their action against Live Nation Worldwide Inc. (“Live Nation”), C3 Presents LLC (“C3”), Bobby Dee Presents, Inc., Snoop Dogg’s LLC, Jeff Shuman, University of Southern California (“USC”), LAFC Sports LLC (“LAFC”), Major League Soccer, LLC, CISS Management Group, CI Security Specialists, Inc. and Does 1 to 100. The FAC alleges three causes of action on behalf of the Estate: (1) wrongful death sounding in negligence; (3) wrongful death – premises liability; and (5) wrongful death – negligent hiring, supervision, training, and/or retention. The FAC alleges three causes of action on behalf of Corniel for: (2) survival action sounding in negligence; (4) survival action – premises liability; and (6) survival action – negligent hiring, supervision, training, and/or retention. The FAC alleges that on December 18, 2021, Darrell Caldwell, also known as Drakeo the Ruler (“Decedent”), was set to perform at the Once Upon A Time in LA Music Festival (“Festival”), where, allegedly, a dispute arose that resulted in his wrongful death (“Subject Incident”).

On

June 26, 2022, Plaintiffs’ case was consolidated with Caldwell v. Live Nation World Wide, Inc., et al.

On December

9, 2024, Plaintiff filed an amendment to the Complaint and named Contemporary Services Corporation (“CSC”) as Doe 11.

CSC moves

for summary judgment or, in the alternative, summary adjudication as to all six of Plaintiffs’ causes of action. Plaintiffs oppose.

Legal Standard

“The party

moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).)

A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

;

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.”<sup>2</sup>(Avivi v. Centro Medico Urgente Medical Center<sup>2</sup>(2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Request for Judicial Notice

CSC

requests that the Court take judicial notice of 11 court documents. The requests include:

1.

Plaintiffs' FAC;

2.

Declaration of Crystal T. Innabi in support of LAFC's motion for summary judgment;

3.

Declaration of Brian Thomas in support of LAFC's motion for summary judgment;

4.

Compendium of Evidence in support of LAFC's motion for summary judgment;

5.

Court's ruling granting LAFC's motion for summary judgment;

6.

Declaration of Jerome Friedberg in support of USC's motion for summary judgment;

7.

Declaration of James Furin in support of USC's motion for summary judgment;

8.

Compendium of Evidence in support of USC's motion for summary judgment;

9.

Supplemental Compendium of Evidence in support of USC's motion for summary judgment;

10. Declaration

of Janine Cohen in support of USC's motion for summary judgment;

11. Court's

ruling granting USC's motion for summary judgment

The

Court grants Defendant's request for judicial notice pursuant to Evidence Code section 452, subdivision (d) for all 11 requests as to the existence of the documents, but not the truth of matters asserted in such documents. (Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482.)

Evidentiary Objections

Both

Plaintiffs and CSC made evidentiary objections.

Plaintiffs

make six evidentiary objections to Adrian Esquilin's declaration. The Court rules in the following manner:

Sustained:

1 (Improper Opinion/Legal Conclusion/Lacks Foundation), 2 (Improper Opinion/Legal Conclusion/Lacks Foundation), 3 (Improper Opinion/Legal Conclusion/Lacks Foundation), 4 (Improper Opinion/Legal Conclusion/Lacks Foundation), 5 (Improper Opinion/Legal Conclusion/Lacks Foundation), 6 (Improper Opinion/Legal Conclusion/Lacks Foundation)

Plaintiffs

also make five evidentiary objections to Edward Kim's declaration. The Court rules in the following manner:

Sustained: 8

(Improper Opinion/Legal Conclusion), 9 (Improper Opinion/Legal Conclusion), 15 (Improper Opinion/Legal Conclusion), 16 (Improper Opinion/Legal Conclusion)

Overruled: 7

Plaintiffs

also make two evidentiary objections to Katie J. Brinson's declaration. The Court rules in the following manner:

Sustained: 12

(Lack of Foundation/Hearsay); 13(Speculation/Lack of Foundation

Plaintiffs also

make two evidentiary objections to CSC's Compendium of Evidence, Exhibits B through K. The Court rules in the following manner:

Sustained:

14 (Hearsay/Lack of Foundation)

Overruled: 15

The Court

declines to rule on the CSC's evidentiary objections per Code of Civil Procedure section 437c, subdivision (q).

Analysis

CSC moves

for summary judgment or in the alternative, summary adjudication on the grounds that: (1) CSC is entitled to summary judgment as to all causes of action; (2) CSC did not owe a duty to Decedent and did not proximately cause Decedent's death as to the first cause of action; (3) CSC did not owe a duty to Decedent and did not proximately cause Decedent's death as to the second cause of action; (4) CSC did not owe a duty to Decedent and did not proximately cause Decedent's death as to the third cause of action; (5) CSC did not owe a duty to Decedent and did not proximately cause Decedent's death as to the fifth cause of action; (6) CSC is entitled to judgment as to the fifth cause of action; and (7) CSC is entitled to judgment as to the sixth cause of action. The FAC alleges three

causes of action: a wrongful death claim and a separate survivor claim. Because the evidence used in each cause of action is identical, the Court will address the three causes of action based on their elements.

## Preliminary

### Issues

A “fundamental principle of summary judgment law that was disregarded—that the procedural rules required by statute must be strictly applied.” (California-American Water Co. v. Marina Coast Water Dist. (2022) 86 Cal.App.5th 1272, 1296.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, . . . A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

““If

summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b) (emphasis added).)

Here,

a discrepancy exists between CSC’s notice of motion and its separate statement. While the notice of CSC’s motion identifies the causes of action and the elements at issue, CSC’s separate statement fails to repeat verbatim the issues listed on the notice of motion as required by California Rules of Court, rule 3.1350(b).)

Another defect

is the format of CSC’s separate statement. California Rules of Court, rule 3.1350(d)(3) requires that the separate statement be in a two-column format. “The statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column.” (Cal. Rules of Court, rule 3.1350(d)(3) (emphasis added).) CSC drafted its separate statement but incorrectly filled out both

columns, making it procedurally incorrect. (See Cal. Rules of Court, rule 1350 (h).)

Thus,

both of CSC's procedural defects in its moving papers are sufficient basis to deny CSC's motion. However, the Court will address the merits of CSC's motion for summary judgment and summary adjudication as to the first and second causes of action.

#### First and Second Cause of Action

– Negligence (Wrongful Death) and (Survival Action)

““To

establish a cause of action for negligence, the plaintiff must show that the 'defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.' [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care." [Citation.] “[T]he existence and scope' of the defendant's duty is one of law to be decided by the court, not by a jury, and therefore it generally is 'amenable to resolution by summary judgment.' [Citation.]” (Murphy v. Pina (2025) 115 Cal.App.5th 305, 322 (citations omitted).)

“A

defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134 (Isaacs).) ““The proper test to be applied to the liability of the possessor of land in accordance with [Civil Code section 1714] is whether in the management of [one's] property [one] has acted as a reasonable [person] in view of the probability of injury to others.” (Moses v. Roger-McKeever (2023) 91 Cal.App.5th 172, 179.)

CSC

contends that it did not owe a duty of care to Plaintiffs with respect to Decedent's death because it: (1) did not own, possess, or control the Festival Premises, including the area where the Subject Incident occurred; (2) did not owe a duty to protect from third-party criminal conduct; and (3) Plaintiff cannot establish causation.

The

undisputed material facts in the present motion is that the Festival was held on December 18, 2021. (Undisputed Material Facts ("UMF") 1) The Festival was organized and produced by co-Defendants Live Nation and C3. (UMF 2)

The

party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar, supra, 25 Cal.4th at p. 850.)

"In order

to meet the test of sufficiency and thus place the proceeding in the posture where, in the absence of sufficient counter-affidavits, the trial court would be required to grant the motion for summary judgment, the affidavit or affidavits of the moving party must satisfy three requirements: (1) They must contain facts sufficient to entitle the moving party to a judgment, i.e., facts establishing every element necessary to sustain a judgment in his favor; (2) such facts must be set forth with particularity, i.e., all the requisite evidentiary facts must be stated, and not the ultimate facts or conclusions of law; and (3) the affiant must show that if sworn as a witness he can testify competently to the evidentiary facts contained in his affidavit."

(Kramer v. Barnes (1963) 212 Cal.App.2d 440, 446.) "The declarations are deficient in that they contain in part only conclusions." (Colby v. Schwartz (1978) 78 Cal.App.3d 885, 888.) "Personal knowledge and competency must be shown in the supporting and opposing affidavits and declarations." (Hayman v. Block (1986) 176 Cal.App.3d 629, 638.) "Matters which would be excluded under the rules of evidence if proffered by a witness in a trial as hearsay, conclusions or impermissible opinions, must be disregarded in supporting affidavits." (Id. at p. 639.)

CSC relies

on inadmissible evidence and improperly attempts to rely on USC and LAFC's evidence submitted with each of their respective motions for summary judgment. CSC cannot bypass the rules of evidence by asking the Court to take judicial notice of the Court records or rulings on other motions. As addressed above,

the Court can take judicial notice of the documents' existence, but it cannot take judicial notice of the hearsay statements within them. Moreover, the holding in USC and LAFC's motion for summary judgment has no effect on CSC's motion for summary judgment. USC and LAFC met their burden to prevail on their motions for summary judgment. CSC must present evidence to support that it is also entitled to summary judgment; it cannot rely on the other party's outcome as evidence for the purpose of summary judgment.

A separate issue is the referenced invoices to USC and LAFC. Adrian Esquilin fails to lay a foundation as to the contents of his declaration; he does not establish that he was present at the Festival and incorrectly dates the event. (Esquilin Decl., ¶¶ 1-6.) Esquilin attests more than his knowledge of what happened at the Festival. (See Esquilin Decl.) Similarly, Edward Kim and Katie J. Brinson are attorneys in the case and draw improper legal conclusions about the facts. (See Kim Decl.; Brinson Decl.) Thus, these declarations are insufficient to support CSC's burden of establishing that it did not owe Plaintiffs a duty and was not the cause of the Subject Incident. The triable issue of material fact is CSC's role leading up to the Festival and the scope of its work at the Festival. The invoices submitted by CSC are not sufficient to establish that there is no triable issue of material fact as to where staff was placed and/or the role of staff. (CSC Ev. Ex. L, M.)

For the reasons listed above in this ruling, CSC did not meet its burden to establish that it did not owe Decedent a duty of care. Based on the Separate Statement and evidence submitted by CSC, a triable issue remains as to CSC's role leading up to the Festival and during the Festival. The Court does not need to address the remaining arguments of CSC's motion regarding criminal conduct and causation. The burden does not shift to Plaintiffs.

Thus, CSC's motion for summary judgment is denied. CSC's motion for summary adjudication as to the first and second causes of action is denied.

Conclusion

Defendant

Contemporary Services Corporation's motion for summary judgment is denied.

Defendant

Contemporary Services Corporation's motion for summary adjudication as to the first and second causes of action is denied.